SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday July 28, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. **Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.**

2. **Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to: LawAndMotionReplyBriefs@SanMateoCourt.org**

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

https://sanmateocourt.zoomgov.com/ **Meeting ID:** 160 624 8977 **Password:** 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM
LINE 1

23-CIV-01887 CHARLES KING VS. ERIC STUART, ET AL.

CHARLES KING	PRO SE
ERIC STUART	

PLAINTIFF'S MOTION FOR RECONSIDERATION

TENTATIVE RULING:

Plaintiff Charles King's motion for reconsideration of the Court's June 23, 2026 order deeming requests for admission admitted and imposing sanctions is DENIED.

As has been noted with several of plaintiff's filings, there are no proofs of service in the court file. California Rules of Court 3.1300 requires that "proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." Without the proofs of service being filed, there is no evidence that defendants have been properly served with the motion and the court lacks jurisdiction to hear the motion. (*Oats v. Oats* (1983) 148 Cal.App.3d 416, 420.) Once again, plaintiff has failed to file a proof of service. However, defendants have filed an opposition brief in response and thus the defect is waived. (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1288; *(Tate v. Superior Court* (1975) 45 Cal.App.3d 925, 929.)

A. Background

This is a landlord tenant action arising from plaintiff's habitability and safety concerns regarding the apartment and rental property premises he rents from defendants.

On August 13, 2025, defendant Alex Rubashevsky propounded a first set of written discovery consisting of Form Interrogatories, Set One, Request for Production of Documents, Set One, Special Interrogatories, Set One, and Requests for Admissions, Set One, to Plaintiff. (Declaration of Eric T. Goodman ¶ 4.)

On that same date, August 13, 2025, defendant AVG Investment LLC propounded a second set of written discovery consisting of Form Interrogatories, Set Two, Request for Production of Documents, Set Two, Special Interrogatories, Set Two, and Requests for Admissions, Set One. (Goodman Decl. ¶ 5.) Plaintiff did not respond to defendants' discovery motions and on March 4, 2026, defendants filed motions to compel and motions to deem the request for admissions admitted. (Goodman Decl. ¶ 6.)

On May 19, 2026, the motion to deem facts admitted was granted. (CMO May 19, 2026.)

On June 23, 2026, the Court ruled **on the merits** of plaintiff's May 5, 2026 motion, and denied the motion for relief from deemed admission due to mistake, inadvertence or alleged excusable neglect. (Goodman Decl. Ex. C.) In that motion, plaintiff's declaration in support stated that he reasonably believed that his former attorney had prepared and served responses, he believed that the responses applied to both defendants, and he did not intentionally failed to respond, but his failure was the result of mistake, inadvertence and excusable neglect.

The instant motion before the court is plaintiff's motion for reconsideration of the Court's June 23, 2026 order denying relief from deemed admissions also on the basis of alleged new and different facts with relief warranted under Code of Civil Procedure section 1008. For the first time plaintiff asserts that defendant prepared the requests for admission based on confidential materials received in mediation.

Defendants opposes contending in pertinent part that plaintiff's renewed application for reconsideration should be denied because it fails to present a satisfactory explanation for not having raised the new or different information earlier under *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Ca1.4th 830, 839 [Code of Civil Procedure section 1008 requires a party filing an application for reconsideration or a renewed application to show diligence with a satisfactory explanation for not having presented the new or different information earlier."].) Moreover, defendants contend the deadline to raise objections to defendants' August 2025 discovery requests have passed and the allegations of defense misuse of mediation materials is completely unsupported and the declaration in support of the current motion contradicts the earlier basis of his surprise/excusable neglect. The Court agrees with defendants.

B. Legal Standard

Under Code of Civil Procedure section 1008, subdivision (a), a party may move for reconsideration of an order based on new or different facts, circumstances, or law. The motion must be filed within 10 days after service of notice of entry of the order and movant must also submit an affidavit stating (1) what application was previously made, (2) to what judge, (3) what order or decisions were made, and (4) what new or different facts, circumstances, or law are presented. "Such a motion requires new facts, circumstances, or law that, despite reasonable diligence, could not have accompanied the original motion. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 839 , 189 Cal.Rptr.3d 824, 352 P.3d 391.)" (*Fettig v. Hilton Garden Inns Management LLC* (2022) 78 Cal.App.5th 264, 269.)

C. Discussion

The court has already reconsidered the motion to deem the request for admission and granting of sanctions on the basis of surprise, mistake and excusable neglect. (See CMO June 23, 2026, Declaration of Eric Goodman Ex. B.) At that time the court found plaintiff had been on notice of the discovery deadline "since September 2025" and that "his failure to provide responses prior to the hearing on the motion to deem facts admitted was not the result of mistake, inadvertence or excusable neglect." (*Id.*)

In the instant motion, plaintiff asserts that he was confused regarding "the discovery closure, the change in attorneys, the change in format, and the similarity between the [requests for admission] and [plaintiff's] mediation materials." (Reply ¶ 5.) The court notes the declaration included in plaintiff's response filed July 21, 2026 is not properly before the court because it does not include the essential wording set forth in Code of Civil Procedure 2015.5 which requires the declaration to be made "under penalty of perjury of the laws of the State of California that the foregoing is true and correct." Regardless, the rejection of plaintiff's documents which were improperly submitted and therefore not filed in time before the court's ruling are not new facts. The matter of the discovery closure or deadline confusion as well as the change in attorneys was already addressed in the court's June 23, 2026 order and will not be revisited.

Nor is the resemblance between the RFAs and the mediation materials a "new fact" because mediation concluded July 22, 2025 in non-agreement. (Statement of Non- Agreement filed August 22, 2025.) **Plaintiff's own declaration submitted with the motion states that plaintiff prepared and submitted his mediation paperwork on July 18, 2025. (Declaration Charles King, ¶¶ 2&3.) On August 13, 2025, plaintiff determined the RFAs were "derived directly from [his] confidential mediation." (King Decl. ¶ 4.)** "Facts of which a party seeking reconsideration was aware at the time of the original ruling are not 'new or different facts,' as would support a trial court's grant of reconsideration. (*In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468, 95 Cal.Rptr.3d 464.)" (*People v. Safety National Casualty Corp.* (2010) 186 Cal.App.4th 959, 974.) Thus, plaintiff has been on notice of any alleged similarity between the RFAs served in August 2025 at the time he began seeking reconsideration and relief from the deemed admissions, which was on or around March 30, 2026. Moreover, there is no demonstration of diligence in presenting this information which would have been known as of the service date of the RFAs as is discussed in *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC*, *supra*, 61 Cal.4th 830.

However, even if the similarity is considered a new fact, a resemblance between the RFAs and the mediation materials is not a violation of the Evidence Code because the RFAs are reasonably related to the operative complaint and defense counsel's declaration makes clear that the RFAs were drafted based on the complaint's allegations. (See Goodman Decl. ¶ 7, see also Ex. A.)

Accordingly, for all of the reasons stated above, plaintiff's second motion for reconsideration of the Court's ruling deeming facts admitted and directing sanctions against plaintiff is DENIED.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendants shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 2

24-CIV-00893 VIRGINIA BREW VS ROCKET MORTGAGE, LLC

VIRGINIA BREW	REUBEN D NATHAN
ROCKET MORTGAGE, LLC	ERIC J. GITIG

COMPLIANCE HEARING

TENTATIVE RULING:

The parties are to APPEAR.

On March 17, 2026, the court had a hearing to discuss cy pres recipients. The court approved Legal Aid at Work, Legal Aid Society of San Mateo County, and Brilliant Corners. The court ordered the settlement administrator, Phoenix, to distribute the monies, and then for plaintiff to file and serve, and email Department 4 a supplemental declaration and proposed order that the funds had been distributed. No such supplemental declaration or proposed order has been submitted. Thus, it is unclear to the court that the cy pres funds have been distributed.

2:00 PM
LINE 3

24-CIV-07727 BANK OF AMERICA N.A. VS. NESTOR S MARIANO

BANK OF AMERICA N.A. BRIAN LANGEDYK
NESTOR S MARIANO

MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT

TENTATIVE RULING:

The court GRANTS plaintiff Bank of America's motion to vacate dismissal and enter judgment under terms of stipulated settlement agreement. The court grants the request for judicial notice.

On March 4, 2025, the court (the Hon. Leland Davis III) approved the stipulation for conditional entry of judgment filed February 28, 2025 and retained jurisdiction pursuant to Code of Civil Procedure section 664.6. On March 4, 2025, the court dismissed the action without prejudice.

Plaintiff now seeks to vacate the dismissal and have judgment entered in its favor against defendant. The declaration of Donald Sherrill, counsel for plaintiff, represents that defendant defaulted on the payment arrangements under the settlement agreement with the last payment on July 18, 2025. On October 27, 2025, plaintiff served defendant with the ten-day notice as required in the settlement agreement. The balance now due, owing and unpaid to plaintiff from defendant is the principal sum of $40,916.96 plus court costs in the sum of $1,043.61 for a total judgment of $41,960.57.

Based on the foregoing evidence the court sets aside and vacates the dismissal and enter judgment in favor of Plaintiff and against Defendant in the principal sum of $40,916.96 plus court costs in the sum of $1,043.61 for a total judgment of $41,960.57.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order and judgment in two separate documents consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 4

24-CLJ-07961 AMERICAN EXPRESS NATIONAL BANK VS. LISA MILLER

AMERICAN EXPRESS NATIONAL BANK	KATIE ZWARG
LISA MILLER	PRO SE

PETITION TO CONFIRM CONTRACTUAL ARBITRATION AWARD

CONTINUED FROM 6/2/2026

TENTATIVE RULING:

The court DENIES without prejudice plaintiff's unopposed petition to confirm arbitration award.

As stated in the court's June 1, 2026 tentative ruling, which was adopted at the June 2, 2026 hearing and put in the minutes: "Plaintiff has not filed any proof of service establishing that Defendant was served with plaintiff's Petition. Plaintiff shall serve defendant by June 9, 2026 and file a proof of service no later than July 14, 2026."

There still is no proof of service in the court file. Thus, the court must deny the motion.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 5
25-CIV-00194 DAVID BERNARD PARVIN VS. SANDEEP KHANNA, ET AL.

DAVID BERNARD PARVIN	NELSON W GOODELL
SANDEEP KHANNA	PRO SE

DEMURRER OF DEFENDANT ASAP COLLECTIONS SERVICES TO THE THIRD AMENDED COMPLAINT

TENTATIVE RULING:

Defendant ASAP Collection Services' Demurrer to Third Amended Complaint is SUSTAINED IN PART with LEAVE TO AMEND.

Plaintiff David Bernard Parvin's Request for Judicial Notice is GRANTED as to the existence of the documents as records of the county recorder and of the Court but not the truth of any matter therein. (See *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194; *Middlebrook-Anderson Co. v. Southwest Sav. & Loan Assn.* (1971) 18 Cal.App.3d 1023, 1038.)

A. Order Sealing Records

Portions of the Third Amended Complaint ("TAC") were sealed by court order on January 29, 2026. (Jan. 29, 2026 Order.) In support of its demurrer, Defendant ASAP Collection Services ("ASAP") submitted an unredacted copy of the TAC as exhibit A to the declaration of Peter C. Catalanotti in support of the demurrer.

In sealing portions of the TAC, the Court found that, according to the declaration of Parvin's counsel submitted in support of the motion to seal, paragraphs 23–24, 82–83, 85, and 93–96 of the TAC contain Parvin's private medical information. (See Aug. 7, 2025 Declaration of Nelson Goodell, ¶ 3.)

Medical records are to be considered "presumptively private," such that a party to moving to seal is "not required to state the obvious in a declaration, that [he or] she would be personally embarrassed to have [his or] her medical records copied into court records. The public, through its courts and legislatures, has recognized that medical records are constitutionally private and statutorily confidential." (*Oiye v. Fox* (2012)211 Cal.App.4th 1036,1070.) While the allegations are not medical records per se, the Court determined that the information set forth in the allegations is sufficiently detailed as to be analogous.

The evidence showed that there existed and continues to exist an overriding interest that overcomes the right of public access to the record, the interest supports sealing the record, and there is a substantial probability the interest will be prejudiced if the record is not sealed. The Court further ordered only those paragraphs containing the private medical condition to be sealed, finding that the proposed sealing was narrowly tailored and there appeared to be no less restrictive means to protect the information.

Based on the same evidence, the Court makes the same findings with respect to the copy of the TAC attached as exhibit A and orders paragraphs 23–24, 82–83, 85, and 93–96 of the exhibit placed under seal.

The clerk of the Court shall seal the unredacted copy of the TAC as exhibit A to the declaration of Peter C. Catalanotti in support of the demurrer. ASAP shall file an redacted copy of the declaration within five days after notice of entry of order.

B. Legal Standard on Demurrer

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) The demurrer may be made to the entire complaint or to any of the cause of action therein. (Code Civ. Proc., § 430.50, subd. (a).)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) And to be sustained, a "demurrer must dispose of an entire cause of action." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) "The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context." (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) Thus, the complaint is construed liberally (see Code Civ. Proc., § 452), and facts that may be inferred from those expressly alleged must also be accepted as true (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405).

C. ASAP Cannot Be Dismissed from TAC

In addition to demurring to each cause of action asserted against it in particular, ASAP demurs to the entire TAC and requests its dismissal. ASAP's argument as to the whole TAC is that none of the causes of action state are well pleaded against it and that the TAC improperly groups the defendants together. The Court has considered ASAP's arguments about 'improper grouping' and the sufficiency of the causes of action with respect to each particular count.

However, as for the request to dismiss the entire TAC: the TAC seeks, *inter alia*, to rescind a foreclosure sale in which ASAP served as trustee. A trustee is an indispensable party in an action to set aside a trustee's deed upon sale. (*Washington Mutual Bank v. Blechman* (2007) 157

Cal.App.4th 662, 668.) The TAC has survived demurrer from other defendants against whom this remedy is sought, and thus ASAP cannot be wholly dismissed from this action.

Accordingly, the demurrer to the entire TAC is OVERRULED.

D. 1st & 2nd Causes of Action: Violations of Civil Code sections 5650, 5690, & 5705

The first cause of action is for violations of Civil Code section 5705, which the TAC alleges prohibits a homeowners association board from initiating foreclosure on a lien that is not "validly recorded." (Jan. 20, 2026 Third Amended Complaint ("TAC"), ¶ 134.) The cause of action is asserted against multiple defendants and ASAP complains of uncertainty, but, for ASAP's part, the TAC clearly alleges ASAP "provided a notice of intent to lien [sic] Plaintiff's unit with" a purportedly unlawful assessment as the agent of Defendant Pointe Pacific Homeowners' Association (the "HOA") in 2016, "did not validate the debt before imposing the lien," and falsely claimed Parvin had violated the HOA's covenants, conditions, and restrictions (*Id.*, at ¶ 59; see *id.*, at ¶ 144.)

The second cause of action is for violations of Civil Code sections 5650 and 5690, based on the HOA allegedly unlawfully imposing a special assessment on Parvin for attorney fees he did not allegedly owe, charging interest thereon, and failed to provide proper notice before doing so. (TAC, ¶¶ 152–158.) No further allegations regarding ASAP in particular are set forth under the count.

ASAP contends that the statute only applies to the governing board of the HOA here, such that ASAP—acting merely as the HOA's agent and trustee of the nonjudicial foreclosure—cannot be held liable for any violation. Indeed, the HOA is alleged to have been acting as a foreclosure trustee and agent of the HOA "at all relevant times." (TAC, ¶ 8.)

ASAP is correct that a foreclosure trustee's duties are limited: "The scope and nature of the trustee's duties are exclusively defined by the deed of trust and the governing statutes. No other common law duties exist." (*Kachlon v. Markowitz* (2008) 168 Cal.App.4th 316, 335.) None of the statutes on which the first two causes of action set forth duties applicable to trustees.

The first two causes of action do not concern ASAP's actions as a trustee—they are based on ASAP's conduct as the HOA's agent in imposing the assessment and related lien. But, while the only law cited by ASAP in support of their contention is case law concerning trustees' duties in nonjudicial foreclosures, Civil Code sections 5650, 5690, and 5705 do not impose duties on anyone but homeowners associations and their boards. Thus, the torts asserted in the first two counts are those of the HOA rather than ASAP's, and agents are not liable for the torts of their principals resulting solely in economic loss even if acting with full knowledge. (See *Weinbaum v. Goldfarb, Whitman & Cohen* (1996) 46 Cal.App.4th 1310, 1315; *Sanchez v. Lindsey Morden Claims Services, Inc.* (1999) 72 Cal.App.4th 249, 255; 3 Witkin, *Summary of California Law* (11th ed. 2026) Agency and Employment, § 210.) Even though the TAC alleges the violations caused Parvin emotional distress (TAC, ¶ 148), such an injury is not compensable here: "recovery is available only if the emotional distress arises out of the defendant's breach of some other legal duty and the emotional distress is proximately caused by breach of the independent duty. Even then, with rare exceptions, a breach of the duty must threaten physical injury, not simply damage to property or financial interests." (*Erlich v. Menezes* (1999) 21 Cal.4th 543, 555 [brackets omitted].)

Accordingly, the demurrer to the first two causes of action is SUSTAINED.

E. <u>3rd Cause of Action: Negligence</u>

The third cause of action is for negligence, based on ASAP's alleged duty to "ensure that the foreclosure was conducted fairly and in accordance with statutory procedures." (TAC, ¶ 162.) What particular act or omission on ASAP's part that constituted a breach of this duty, however, is not clearly set forth, though the TAC alleges that "Defendants" collectively overcharged Parvin, initiated foreclosure based on the unlawful charges, and did not provide notice to Parvin before doing so. (*Id.*, at ¶¶ 163–166.)

Thus, it appears ASAP's liability is premised on the same conduct on which the prior two counts are based: violations of the Civil Code that the HOA may have committed but that ASAP could not commit as agent. Furthermore, to the extent a trustee "to ensure the sale is fairly conducted, according to proper procedures, to achieve the highest possible price" (*Residential Capital v. Cal–Western Reconveyance Corp.* (2003) 108 Cal.App.4th 807, 825), that conduct does not seem to implicate ASAP's role as trustee. Furthermore, as mentioned above, the duties of a foreclosure trustee "are exclusively defined by the deed of trust and the governing statutes. No other common law duties exist." (*Biancalana v. T.D. Service Co.* (2013) 56 Cal.4th 807, 819.) Parvin does not offer any particular statute imposing a duty on trustees that ASAP is supposed to have violated.

Accordingly, the demurrer to the third cause of action is SUSTAINED.

F. <u>4th Cause of Action: UCL Violations</u>

The fourth cause of action is for violations of the Unfair Competition Law. According to ASAP, the fourth count "repackages the same theories asserted in [the] statutory and negligence claims" elsewhere in the TAC and that it should fail for the same reasons. (Apr. 23, 2026 Demurrer, p. 22, ll. 11–12.) As discussed below, some of those claims are sufficiently pleaded and thus constitute unlawful business practices to support the fourth count.

Accordingly, the demurrer to the fourth cause of action is OVERRULED.

G. <u>5th Cause of Action: Violation of Civil Code section 2924m</u>

The fifth cause of action is for violations of Civil Code section 2924m, which sets certain requirements for the bidding process during a foreclosure sale. (See TAC, ¶¶ 205–211.) ASAP in particular is alleged to "willfully violated the statute by advertising the sale as being held in compliance with Civil Code section 2924m, which would have the effect of lowering the market price, only to then fail to actually comply with Civil Code section 2924m by offering the 15-day window required by the statute." (*Id.*, at ¶ 215.)

ASAP does not dispute that the statute "imposes certain post-sale obligations on the trustee, including posting sale information within 48 hours, maintaining a phone line with sale details, and refraining from deeming the sale final until the statutory bidding windows close." (Apr. 23, 2026 Demurrer, p. 16, ll. 15–17.) Instead, ASAP contends there are only "conclusory assertions" that ASAP violated the law. (*Id.*, at l. 18.) To the contrary, the TAC alleges that "[t]he nonjudicial foreclosure trustee declared Mr. Khanna the winning bidder on October 16, 2024 and, indeed, that document was recorded and mailed to the Plaintiff on or around October 23, 2024 stating that the sale was finalized that Mr. Khanna had purchased it. This document was recorded 7 days prior to the fourteen-day period mandated by Civil Code … ." (TAC, ¶ 213.) This is not a mere conclusion for purposes of a demurrer.

ASAP also contends that the TAC does not allege any harm resulting from a violation. This is equally wrong; the TAC alleges in the same paragraph that the violation prevented "any other potential bidders to exceed Mr. Khanna's bid, which would have resulted in Plaintiff receiving additional excess proceeds." (*Ibid.*; see also *id.*, at ¶ 216 ["any other prospective owner-occupants were prevented from bidding, and those excess proceeds would have resulted in Plaintiff having additional proceeds as a result of the sale"].) Parvin is not required to allege any particular person attempted to bid and was prevented from doing so.

Accordingly, the demurrer to the fifth cause of action is OVERRULED.

H. <u>6th Cause of Action: Slander of Title</u>

The sixth cause of action is for slander of title, based on the recording of the notices, certificates, and deeds leading up to and after the foreclosure sale. (TAC, ¶¶ 220–250.) ASAP's liability is premised on two categories of acts: (1) the recording of the notice of default and similar documents despite the purported invalidity of the underlying lien, and (2) the recording of the certificate of sale and issuance of the deed despite the purported noncompliance with Civil Code section 2924m. (*Ibid.*)

Only one category need suffice to defeat demurrer, though ASAP contends that neither set of allegations is sufficient to plead slander of title. With respect to the second category, ASAP repeats the same argument, discussed above, that the TAC does not allege facts showing it violated section Civil Code section 2924m. That argument lacks merit for the same reasons.

ASAP also contends that the TAC does not sufficiently plead malice, which is necessary to defeat the common interest privilege that a trustee otherwise has in recording documents in the foreclosure process. (See Civ. Code, § 2924, subd. (d); *Schep v. Capital One, N.A.* (2017) 12 Cal.App.5th 1331, 1336; *Kaur v. Dual Arch Internat., Inc.* (2024) 107 Cal.App.5th 359, 368.) Malice for such purpose may be pleaded by alleging facts "showing that the defendant lacked reasonable grounds for belief in the truth of the publication and acted in reckless disregard of the plaintiff's rights." (*King v. U.S. Bank National Assn.* (2020) 53 Cal.App.5th 675, 701.)

The TAC alleges that the trustee's deed upon sale recited that the foreclosure sale had been conducted in compliance with Civil Code section 2924m when ASAP had in fact not satisfied all the statutory commands. (TAC, ¶¶ 215, 237.) If ASAP did not comply, then it had no reasonable grounds for believing that it had waited sufficient time for completion of the bidding process or that it made the required postings and thus acted with reckless disregard in issuing the deed.

Accordingly, the demurrer to the sixth cause of action is OVERRULED.

I. <u>8th Cause of Action: Wrongful Foreclosure</u>

The eighth cause of action is for wrongful foreclosure, based on the foreclosure premised on an allegedly invalid lien and the failure to comply with Civil Code section 2924m during the bidding process. (TAC, ¶¶ 265–285.) Like the preceding count, the eighth cause of action thus relies on two separate grounds.

And, ASAP, again, only argues that the TAC has not alleged facts showing the sale was conducted unlawfully for lack of compliance with Civil Code section 2924m or that ASAP had knowledge of its lack of compliance. But, as discussed above, the TAC does sufficiently allege facts showing both.

Accordingly, the demurrer to the eighth cause of action is OVERRULED.

J. <u>9th Cause of Action: Violation of the RFDCPA</u>

The ninth cause of action is for violation of the Rosenthal Fair Debt Collection Practices Act ("RFDCPA"). (TAC, ¶¶ 292–308.) The RFDCPA incorporates federal law, which prohibits a "debt collector" from using "any false, deceptive, or misleading representation or means in connection with the collection of any debt." (15 U.S.C. § 1692e; see Civ. Code, § 1788.17.) The ninth count is based on the notices and communications sent by ASAP to Parvin containing the allegedly invalid debt claimed by the HOA. (TAC, ¶¶ 297, 299.)

ASAP contends that a collections agent who merely relays figures from the creditor without knowledge of falsity or intent to deceive is not liable under the RFDCPA, citing no authority for this proposition. The federal Fair Debt Collection Practices Act incorporated by the RFDCPA is generally not based on any mens rea or scienter but instead strict liability. (*Kaiser v. Cascade Capital, LLC* (9th Cir. 2021) 989 F.3d 1127, 1135.) A debt collector may indeed avoid liability by showing its false or misleading statement "was not intentional and resulted from a bona fide error notwithstanding the maintenance of procedures reasonably adapted to avoid any such error," but that is an affirmative defense on which the debt collector bears the burden of proof "by a preponderance of evidence." (15 U.S.C. § 1692k(c).) And the facts supporting such a showing do not appear on the face of the TAC.

Accordingly, the demurrer to the ninth cause of action is OVERRULED.

K. Leave to Amend

Parvin has not yet had the opportunity to address the particular defects in the first three causes of action identified herein regarding ASAP's liability in particular after a ruling sustaining a demurrer. Accordingly, leave to amend is GRANTED as a matter of fairness pursuant to Parvin's request. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) Plaintiff has ten (10) days from service of written notice of entry of order to file and serve an amended complaint. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc. § 472b.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant ASAP Collection Services shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 6
25-CIV-00194 DAVID BERNARD PARVIN VS. SANDEEP KHANNA, ET AL.

DAVID BERNARD PARVIN	NELSON W GOODELL
SANDEEP KHANNA	PRO SE

DEFENDANT ASAP COLLECTIONS SERVICES MOTION TO STRIKE PORTIONS OF PLAINTIFF'S THIRD AMENDED COMPLAINT

TENTATIVE RULING:

Defendant ASAP Collection Services' Motion to Strike Portions of Plaintiff David Bernard Parvin's Third Amended Complaint is DENIED or is MOOT.

Plaintiff David Bernard Parvin's Request for Judicial Notice is GRANTED as to the existence and legal effect of the documents as records of the county recorder and of the Court but not the truth of any matter therein. (See *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194; *Middlebrook-Anderson Co. v. Southwest Sav. & Loan Assn.* (1971) 18 Cal.App.3d 1023, 1038.)

A. Order Sealing Records

Portions of the Third Amended Complaint ("TAC") were sealed by court order on January 29, 2026. (Jan. 29, 2026 Order.) In support of its motion to strike, Defendant ASAP Collection Services ("ASAP") submitted an unredacted copy of the TAC as exhibit A to the declaration of Peter C. Catalanotti in support of the demurrer.

In sealing portions of the TAC, the Court found that, according to the declaration of Parvin's counsel submitted in support of the motion to seal, paragraphs 23–24, 82–83, 85, and 93–96 of the TAC contain Parvin's private medical information. (See Aug. 7, 2025 Declaration of Nelson Goodell, ¶ 3.)

Medical records are to be considered "presumptively private," such that a party to moving to seal is "not required to state the obvious in a declaration, that [he or] she would be personally embarrassed to have [his or] her medical records copied into court records. The public, through its courts and legislatures, has recognized that medical records are constitutionally private and statutorily confidential." (*Oiye v. Fox* (2012)211 Cal.App.4th 1036,1070.) While the allegations are not medical records per se, the Court determined that the information set forth in the allegations is sufficiently detailed as to be analogous.

The evidence showed that there existed and continues to exist an overriding interest that overcomes the right of public access to the record, the interest supports sealing the record, and there is a substantial probability the interest will be prejudiced if the record is not sealed. The

Court further ordered only those paragraphs containing the private medical condition to be sealed, finding that the proposed sealing was narrowly tailored and there appeared to be no less restrictive means to protect the information.

Based on the same evidence, the Court makes the same findings with respect to the copy of the TAC attached as exhibit A and orders paragraphs 23–24, 82–83, 85, and 93–96 of the exhibit placed under seal.

The clerk of the Court shall seal the unredacted copy of the TAC as exhibit A to the declaration of Peter C. Catalanotti in support of the demurrer. ASAP shall file an redacted copy of the declaration within five days after notice of entry of order.

B. All Prayers Supported by Factual Allegations or Moot

ASAP seeks to strike all prayers for general damages, special damages, punitive damages, injunctive relief, costs, attorney fees, and statutory penalties from the TAC—at least with respect to ASAP in particular.

As for punitive damages, ASAP contends the required malice, fraud, or oppression is not sufficiently pleaded. For the reasons discussed with respect to the slander of title cause of action in the ruling on the accompany demurrer, malice is sufficiently alleged.

As for attorney fees, Parvin's opposition clarifies that he seeks such fees as damages on the slander of title claim (see *Seeley v. Seymour* (1987) 190 Cal.App.3d 844, 865) and under the Rosenthal Fair Debt Collection Practices Act (see Civ. Code, § 1788.62, subd. (c)(1)). ASAP contends that the causes of action are not sufficiently pleaded and lack merit. For the reasons discussed in the ruling on the accompany demurrer, both causes of action are sufficiently pleaded and support an award of attorney fees—either as damages or pursuant to statue.

As for injunctive relief, ASAP contends there is no ongoing or future conduct to be enjoined in this action. However, depending on the resolution of the merits, numerous forms of injunctive relief would appear to be proper. For example, if the alleged foreclosure sale were set aside but the underlying debt not extinguished, an injunction enjoining ASAP from conducting a foreclosure sale not in compliance with law during a subsequent foreclosure would likely be an appropriate remedy.

As to general, special, and statutory damages, ASAP argues that, because damages for pain, suffering, emotional distress, and other noneconomic harms are properly awarded as general damages in certain cases, that a plaintiff cannot request general damages where he is not entitled to noneconomic damages. The Court has sustained the demurrer to the causes of action where Parvin requests general damages (first and third) and thus the request to strike the damages is moot. ASAP makes no argument in support of its request to strike special damages or statutory penalties.

Accordingly, the motion is denied or is moot.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant ASAP Collection Services shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 7
25-CIV-00216 ANTHONY DASHON THORTON VS. #2131 ANGEL SANCHEZ, ET AL.

ANTHONY DASHON THORTON	PRO SE
#2131 ANGEL SANCHEZ	JOANNE TRAN

DEFENDANTS ANGEL SANCHEZ, JERMAINE DAVIS, OSCAR SANCHEZ, AND FLORES- GARCIA'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Defendants' unopposed Demurrer to Plaintiff's First Amended Complaint (FAC) is SUSTAINED WITHOUT LEAVE TO AMEND pursuant to Code of Civil Procedure section 430.10, subdivision (e) and Government Code sections 945.4, 950.2, as follows:

This action pertains to an alleged December 7, 2024 incident during which Plaintiff Anthony Dashon Thornton alleges that he was handcuffed in his residence, taken outside, and placed in a patrol car by defendant police officers Angel Sanchez, Jermaine Davis, Oscar Sanchez, and Flores-Garcia of the East Palo Alto Police Department based on a warrant for another person.

Plaintiff's operative FAC nominally alleges causes of action for breach of contract, common counts, and breach of the covenant of good faith and fair dealing. Defendants argue that each cause of action is subject to demurrer for failure to comply with the claims presentation requirements of the Government Claims Act and for failure to state facts sufficient to constitute a cause of action.

California's Government Claims Act (Gov. Code sections 810–996.6) governs tort liability for public entities and their employees. (Gov. Code, § 810.) Under Government Code section 905, all claims for money or damages against local public entities must be presented in accordance with the Act's procedures. (Gov. Code, § 905.) Government Code section 945.4 reinforces this requirement by providing that no suit for money or damages may be brought against a public entity until a written claim has been presented and acted upon or deemed rejected by the governing board. (Gov. Code, § 945.4.) These requirements are not merely procedural hurdles but have been characterized as substantive conditions precedent that are an integral part of the plaintiff's cause of action. (*Williams v. Horvath* (1976) 16 Cal. 3d 834, 842.)

A critical statute governing suits against individual public employees is Government Code section 950.2 which provides that "a cause of action against a public employee or former public employee for injury resulting from an act or omission in the scope of his employment as a public employee is barred if an action against the employing public entity for such injury is barred" for failure to comply with claim presentation requirements. (Gov. Code, § 950.2.) Notably, this bar applies "even though the public entity is immune from liability for the injury." (*Id.*) Thus, for state tort claims, the claim presentation requirement applicable to a public entity extends derivatively to the individual officer acting within the scope of employment. (See *Williams v. Horvath*, *supra*, 16 Cal. 3d at p. 834.) This principle applies to bar an action against a police officer where the plaintiff fails to file a claim under the Tort Claims Act. (See, e.g. *Del Real v. City of Riverside* (2002) 95 Cal. App. 4th 761 (holding that an injured motorist could not maintain a negligence action against a police officer where the plaintiff failed to timely file a government claim.)

Plaintiff's FAC does not allege that he has complied with a claims statute, but instead alleges that "Defendants are sued in their individual capacities; no claim presentation is required." (FAC, at p. 2.) Plaintiff's causes of action for breach of contract, common counts, and breach of implied covenant of good faith and fair dealing are therefore barred. Plaintiff alleges that the underlying events took place on December 7, 2025. (*Id*. at p. 6.) Claims relating to death, personal injury, or damage to personal property or growing crops must be brought within 6 months after accrual of the cause of action, while for all other types of claims against public entities, the deadline is one year after accrual. (Gov. Code, § 911.2.) More than one year has elapsed since the alleged events; thus the time for filing a government claim has expired.

The FAC does not allege the existence of a contract, any contractual terms, or facts supporting common count or breach of covenant of good faith and fair dealing causes of action. While those deficiencies may be curable by amendment, the claims would still be barred for failure to present a government claim absent an exception.

Plaintiff has already amended his original complaint once, and has not offered any argument that an exception applies to the claims presentation requirement or that he can obtain relief for the requirement. If Plaintiff believes that he has facts to state a cause of action, he shall properly contest the tentative ruling and appear at the hearing to provide facts to support the Court granting leave to amend. Although leave to amend is liberally allowed, such leave should not be granted where, in all probability as it appears to be in this case, amendment would be futile. (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1001.) It is the burden of the party seeking leave to amend to show the possibility that amendment can cure the legal defects of the pleading. (*Frayo v. Martin* (2024) 102 Cal.App.5th 1025, 1033; *Fox Paine & Co., LLC v. Twin City Fire Ins. Co.* (2024) 104 Cal.App.5th 1034, 1060.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 8

26-CIV-00963 ROBSON GONCALVES DE OLIVEIRA VS. CITY OF BURLINGAME

ROBSON GONCALVES DE OLIVEIRA	PRO SE
CITY OF BURLINGAME	SUSAN A. DENARDO

DEMURRER TO THE PETITION FOR PEREMPTORY WRIT OF MANDATE IN THE FIRST INSTANCE (CCP §1085)

CONTINUED FROM 6/16/2026

TENTATIVE RULING:

The court SUSTAINS without leave respondent City of Burlingame's unopposed demurrer to the petition of petitioner Robson Goncalves de Oliveira.

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) The demurrer may be made to the entire complaint or to any of the cause of action therein. (Code of Civ. Proc., § 430.50, subd. (a).)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code of Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) "The complaint must be given a reasonable interpretation and read as a whole with its parts considered in their context." (*Herman v. Los Angeles County Metropolitan Transportation Authority* (1999) 71 Cal.App.4th 819, 824.) Thus, the complaint is construed liberally (Code of Civ. Proc., § 452), and facts that may be inferred from those expressly alleged must also be accepted as true (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405).

"[B]ecause standing goes to the existence of a cause of action, lack of standing may be raised by demurrer." (*Buckland v. Threshold Enterprises, Ltd.* (2007) 155 Cal.App.4th 798, 813.)

Code of Civil Procedure section 1086 provides a writ of mandate "must be issued upon the verified petition of the party beneficially interested." (Code Civ. Proc. §1086.) In *County of San Luis Obispo v. Superior Court (Munari)* (2001) 90 Cal. App.4th 288, 291-296, the court held that a landowner who lost his property through foreclosure could no longer maintain a mandamus action challenging the county's denial of his development application.

Here, like in *Munari*, Petitioner is no longer beneficially interested in the property at 1050 Carolan Avenue, Unit 120. Petitioner went to trial in an unlawful detainer action and lost. (RJN Nos. 2, 3.) Judgment was entered in favor of Equity Management LLC, who was allowed to proceed with a writ of execution. (RJN Nos. 2, 3, 10.) While the Court allowed for a conditional stay of the judgement, Petitioner sought to revise the conditions. (RJN Nos. 9, 10.) The Court denied his request to revise the conditions of the stay on March 2, 2026. (RJN No. 10.) Therefore, Petitioner does not have legal possession of the property and thus lacks beneficial interest to establish standing to pursue this petition.

Accordingly, Respondent's demurrer is SUSTAINED, without leave to amend. If Petitioner believes that he has facts to state a cause of action, he shall properly contest the tentative ruling and appear at the hearing to provide facts to support the Court granting leave to amend. Although leave to amend is liberally allowed, such leave should not be granted where, in all probability as it appears to be in this case, amendment would be futile. (*Foroudi v. Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1001.) It is the burden of the party seeking leave to amend to show the possibility that amendment can cure the legal defects of the pleading. (*Frayo v. Martin* (2024) 102 Cal.App.5th 1025, 1033; *Fox Paine & Co., LLC v. Twin City Fire Ins. Co.* (2024) 104 Cal.App.5th 1034, 1060.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Respondent shall prepare for the Court's signature a written order and judgment in two separate documents consistent with the Court's ruling, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM
LINE 9
26-CIV-02397 QUALITY LOAN SERVICE CORP VS. ALL CLAIMANTS TO SURPLUS FUNDS, ET AL.

QUALITY LOAN SERVICE CORP MATTHEW E PODMENIK
ALL CLAIMANTS TO SURPLUS FUNDS

RESPONDENT RENEE HULAR'S CLAIM FOR SURPLUS FUNDS

PROVIDENT TRUST GROUP FBO IRA J. BOREN I.R.A.'S CLAIM FOR SURPLUS FUNDS

TENTATIVE RULING:

The Petition Regarding Undistributed Surplus Proceeds of Trustee's Sale from property located at 3371 Melendy Drive, San Carlos, CA, 94070, ("property") is ruled on as follows:

On March 26, 2026, Petitioner and Trustee Quality Loan Service Corporation ("Trustee") filed this Petition seeking to deposit surplus proceeds following a foreclosure sale of the property that took place on November 12, 2025. The Trustee foreclosed on a deed of trust executed by Richard Hular ("Richard") in 2005 in favor of Najarian Loans, Inc.

On April 28, 2026, the court ordered the Trustee to deposit surplus proceeds of $1,248,712.12 with the court, and also ordered that it be discharged of further responsibility for the surplus proceeds.

Also, on April 28, 2026, the court sent a notice of hearing to all potential claimants notifying them of this hearing regarding distribution of the surplus proceeds. The court received two claims. On July 13, 2026, Renee Hular ("Renee") filed a claim for $598,863.56 based on her status as a secured junior lienholder. The same day, Provident Trust Group FBO Ira J. Boren I.R.A. ("Boren") filed a claim objecting in part to Renee's claim and seeking the remainder of the surplus proceeds as the vested owner at the time of the Trustee's sale. No claim has been filed by Richard.

Surplus proceeds are to be distributed in the following order of priority:

> (1) To the costs and expenses of exercising the power of sale and of sale, including the payment of the trustee's fees and attorney's fees permitted pursuant to subdivision (b) of Section 2924d and subdivision (b) of this section.
>
> (2) To the payment of the obligations secured by the deed of trust or mortgage which is the subject of the trustee's sale.
>
> (3) To satisfy the outstanding balance of obligations secured by any junior liens or encumbrances in the order of their priority.

> (4) To the trustor or the trustor's successor in interest. In the event the property is sold or transferred to another, to the vested owner of record at the time of the trustee's sale.

(Civil Code § 2924k, subd. (a).)

Each claimant in a dispute under Civil Code section 2924k has their own burden to prove each fact essential to their claim. (*MTC Financial Inc. v. California Dept. of Tax & Fee Administration* (2019) 41 Cal.App.5th 742, 749; Evid. Code, § 500.)

Renee's claim is granted.

The Court need not and does not rule on Boren's objections filed July 23, 2026 to the supplemental declaration of Nicholas Flegel because the court did not rely upon his declaration for the ruling.

The Trustee's Sale Guarantee attached to the Petition shows a junior lien recorded by Renee in 2017 for $350,000. (Petition, Exh. 5.) This lien takes priority over Boren's claim as a vested owner of record at the time of the sale.

Renee provides a declaration stating that Richard never made any payments on the Installment Note. (Renee Decl., ¶ 4.) The Installment Note states that Richard agrees to pay Renee $350,000 at the rate of 7% interest per annum. (*Id.*, Exh. A.) The note also provides that if obligated to institute legal action to enforce the note, the prevailing party shall recover attorney's fees and costs. (*Ibid.*) Thus, Renee seeks $350,000 unpaid principal, $228,666.67 interest through July 28, 2026, $435 costs and $19,761.89 in attorneys' fees for a total of $598,863.56.

Boren argues that Renee's claim should be reduced to either $164,000 or $198,432.70 because Renee has not provided evidence showing she actually loaned Richard $350,000.
However, as Boren acknowledges, a written instrument is presumptive evidence of consideration. (Civil Code, § 1614.) Boren has not rebutted this presumptive evidence. Further, this action is distinguishable from *In re McConnell's Estate* (1936) 6 Cal.2d 493, 499-500. In that case, the respondent paid no consideration on the transfer of the note and the evidence conclusively established that the note was unsupported by consideration. (*Id.*, at p. 499.) In contrast, Renee produced documents showing that she advanced funds to Richard at various times. (Rene Decl., ¶ 2, Exh. A, B.)

Boren also challenges the interest and attorney's fees incurred after the Trustee's sale. Boren relies on Civil Code section 2924j which provides that a written claim to the trustee include the "amount of the claim to the date of the trustee's sale." (See Civil Code § 2924j, subd. (a)(4)(A).) Civil Code section 2924j(a) addresses notice that is required to be provided by a trustee regarding the surplus proceeds from the sale. Section 2924k, as set forth above, does not include such qualifying language. It provides for payment "[t]o satisfy the outstanding balance of obligations secured by an any junior liens or encumbrances in the order of their priority." (Civil Code, § 2924k(a)(3).) Thus, it instructs the proceeds be paid to satisfy the outstanding balance.

Accordingly, Renee's claim is GRANTED for $598,863.56.

Boren's claim is denied.

Boren claims that he is entitled to the remainder of the surplus proceeds because he was the vested owner of record at the time of the Trustee's sale. However, he has failed to meet his burden of proof to demonstrate that he was the vested owner of record at the time of the Trustee's sale.

The Trustee's Sale Guarantee attached to the Petition shows that a deed of trust was recorded in 2019 in favor of Boren for a $350,000 loan to Richard. Boren provides a copy of this note. (Brian Boren Decl., ¶ 4, and Exh. 1.) In 2021, Richard defaulted in making payments on the note. (*Id.*, at ¶ 10.) Boren instituted non-judicial foreclosure proceedings by recording a Substitution of Trustee and a Notice of Default in 2022. (*Id.*, at ¶ 11, and Exhs. 4 and 5.) These recorded documents are stated in the Trustee's Sale Guarantee, along with a Notice of Trustee's Sale recorded on October 28, 2022. Boren claims that it then entered into two Forbearance Agreements with Richard to avoid foreclosure. (*Id.*, at ¶ 12.) Under one of these agreements, Richard waived and released any claims arising out of the note and deed of trust if he defaulted under the Forbearance Agreements. (*Ibid.*) Boren has not provided a copy of these Forbearance Agreements though, Boren demonstrates no personal knowledge of the transaction and provides no facts to support the contentions.

Boren then states that it foreclosed on its lien by credit bid at a foreclosure sale on July 30, 2025. (Boren Decl., ¶ 12.) The Trustee's Deed Upon Sale was recorded on September 18, 2025. (Id., at ¶ 12, and Exh. 6.) Boren's Trustee's Deed Upon Sale shows up in the Trustee's Sale Guarantee as recorded the day after the Trustee recorded its Notice of Sale on September 17, 2025. Boren's sale of the property took place on September 17, 2025. However, the Trustee's Sale Guarantee does not show a Notice of Trustee's Sale recorded by Boren for this sale. Therefore, there is no evidence that Boren owned the property at the time of the Trustee's sale.

Thus, Boren's claim is DENIED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Renee's counsel shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM
LINE 10

26-CLJ-00102 WELLS FARGO BANK, N.A. VS FIDEL SIFUENTES

WELLS FARGO BANK, N.A.	ANTHONY LIO
FIDEL SIFUENTES	PRO SE

MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AND OF NONAPPEARANCE

TENTATIVE RULING:

The court GRANTS plaintiff Wells Fargo Bank's unopposed motion to deem facts admitted against defendant Fidel Sifuentes.

On February 19, 2026, plaintiff served by mail defendant with requests for admissions. (Declaration of Kirean D. McKee, Ex. A.) More than thirty-five days have passed and there have been no responses. Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

Plaintiff states in its papers that it submits on the moving papers.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.